

**CHAPTER cxlvii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Melrose District Water. A.D. 1904.
[1st August 1904.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Melrose District Water Order Confirmation Act 1904. Short title.

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S C H E D U L E.

MELROSE DISTRICT WATER.

Provisional Order to empower the Melrose District Committee of the County Council of the County of Roxburgh to construct and maintain waterworks and to supply water within their district and to authorise the County Council of the County of Roxburgh to acquire lands and servitudes for the purposes of such water supply and to authorise and require the said County Council to levy assessments and to borrow money for such waterworks and supply and for other purposes.

WHEREAS the County Council of the county of Roxburgh (herein-after called "the County Council") are the local authority for the said county in the execution of the Public Health Acts as herein-after defined with respect to acquiring and holding land rating and borrowing :

And whereas the county of Roxburgh has for the purposes of the administration therein of the Public Health Acts been divided into districts in accordance with the provisions of the Local Government (Scotland) Act 1889 (herein-after called "the Act of 1889") one of which districts comprises the parishes of Melrose (exclusive of the area comprised within the police burgh of Melrose) Bowden Lilliesleaf St. Boswells and Maxton and is called "the Melrose District" :

And whereas the Melrose District Committee of the County Council constituted under the provisions of the Act of 1889 (herein-after called "the District Committee") are the local authority for the execution within the Melrose District of the Public Health Acts except with respect to acquiring or holding land rating and borrowing :

And whereas under the provisions of the Public Health Acts certain portions of the said Melrose District have been formed into special water supply districts known as the special water supply districts of St. Boswells Newtown Bowden Gattonside Newstead Lilliesleaf and Midlem :

And whereas the water supply of the said special water supply districts of St. Boswells Newtown Lilliesleaf and Midlem and also of various dwelling-houses within that portion of the said Melrose

District in this Order defined is insufficient in quantity or defective in quality inconvenient of access or in other respects inadequate and unsatisfactory :

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And whereas it is expedient that from and after the passing of the Act confirming this Order the said special water supply districts of St. Boswells Newtown Lilliesleaf and Midlem should subject to such conditions as are in this Order contained cease to exist as special water supply districts and to be assessed for the purposes of water supply separately from other parts of the portion of the Melrose District in this Order defined :

And whereas it is expedient in the interest of the inhabitants of the portion of the said Melrose District in this Order defined that the District Committee should be authorised and empowered to construct waterworks and to supply water as in this Order provided and to exercise such other powers in that behalf as are in this Order contained and that the County Council should be authorised and empowered to acquire and hold lands for the purpose of the construction thereon by the District Committee of such waterworks and for the other purposes of the undertaking :

And whereas it is expedient that the County Council should be authorised and required to levy assessments in respect of the waterworks and water supply by this Order authorised in the manner provided by this Order :

And whereas it is expedient that the County Council should be authorised to borrow on the security of such assessments such moneys as may be necessary for the purposes of this Order :

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands streams and other property required or which may be taken for the purposes or under the powers of this Order have been deposited with the principal sheriff clerk of the county of Roxburgh in his offices at Jedburgh and Melrose respectively and with the principal sheriff clerk of the county of Selkirk in his office at Selkirk and are herein-after respectively referred to as "the deposited plans sections and book of reference" :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

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Confirmation Act, 1904.

[4 EDW. 7.]

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Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited for all purposes as the Melrose District Water Order 1904.

Incorporation of Acts.

2. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order :—

The Lands Clauses Acts :

The Waterworks Clauses Act 1847 except the clauses and provisions with respect to the communication pipes to be laid by the undertakers and with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except the words in section 44 thereof “ with the consent in writing of the
“ owner or reputed owner of any such house or of the
“ agent of such owner ” and also with the exception of clauses 68 70 71 and 72 :

The Waterworks Clauses Act 1863 :

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith.

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts or the Act of 1889 have the same respective meanings unless there be something in the subject or context repugnant to such construction In this Order and in the Acts wholly or partially incorporated with this Order—

The expression “ the county ” means the county of Roxburgh ;

The expression “ the sheriff ” means the sheriff of Roxburgh Berwick and Selkirk or any of his substitutes ;

The expression “ the County Council ” means the County Council of the county under the Local Government (Scotland) Act 1889 and Acts amending the same ;

The expression “ the District Committee ” means the Melrose District Committee of the County Council constituted under the provisions of the said last-mentioned Act ;

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The expression "the Melrose District" means the Melrose District of the county of Roxburgh formed in accordance with the provisions of the Act of 1889 according to the existing boundaries thereof;

The expression "the Melrose district water supply area" means that portion of the Melrose District which includes the whole of the parishes of Bowden Lilliesleaf St. Boswells and Maxton according to the existing boundaries thereof and that portion of the parish of Melrose (exclusive of the police burgh of Melrose) which lies south of the River Tweed and east of Melrose Burgh and of the road leading from Melrose Burgh by Dingleton to Bowden;

The expression "limits of supply" means and includes the Melrose district water supply area as above defined and as delineated and coloured blue on the plan signed in triplicate by the Secretary for Scotland one copy whereof is deposited in the office of the Secretary for Scotland another copy in the office of the Clerk of the Parliaments and another copy in the office at Jedburgh of the principal sheriff clerk of the county of Roxburgh;

The expression "the Public Health Acts" means the Public Health (Scotland) Act 1897 and includes any Act amending the same;

The expression "the Act of 1889" means the Local Government (Scotland) Act 1889 and includes any Act amending the same;

The expression "the standing joint committee" means the standing joint committee of the County Council and the commissioners of supply of the county appointed in pursuance of the Act of 1889;

The expression "clerk" means the clerk of the District Committee and "treasurer" and "collector" mean the treasurer and collector for the time being of the County Council;

The expression "valuation roll" or "valuation rolls" means the valuation rolls for the county of Roxburgh made up in terms of the Lands Valuation (Scotland) Act 1854 or any Act amending the same;

The expressions "lands" "premises" and "street" shall have the same respective meanings as in the Public Health (Scotland) Act 1897;

The expression "the Special Act" means this Order;

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The expressions "the Company" "the Undertakers" "the Promoters of the undertaking" mean respectively the District Committee and the County Council as the case may be; The expression "the water undertaking" shall comprehend not only the works authorised to be constructed by and the lands and water acquired under this Order and the rights powers and privileges conferred by this Order on the County Council and the District Committee, but also the whole property and works of the County Council and the District Committee connected with their existing water supply to the special water supply districts of St. Boswells and Newtown and such other property and works rights powers and privileges as may be acquired by the County Council or the District Committee under the provisions of this Order relating to the water supply and distribution thereof:

And in the Waterworks Clauses Act 1847 the expression "the waterworks" means the existing waterworks above specified and the works by this Order authorised.

Power to
construct
works.

4. Subject to the provisions of this Order the District Committee may on the lands to be acquired by the County Council as herein-after provided make and maintain in the lines and according to the levels shown on the deposited plans and sections the works herein-after described together with all necessary and proper embankments dams overflows by-washes weirs bridges roads approaches ways wells tanks basins gauges filter beds stand pipes sluices outlets outfalls drains discharge pipes adits shafts tunnels aqueducts culverts cuts channels conduits mains pipes junctions valves air valves engines buildings apparatus and other conveniences in connection with or incidental to the said works or any of them or necessary or convenient for diverting impounding appropriating taking collecting storing conducting distributing and regulating the supply of water for the purposes herein-after mentioned and for compensating all persons whose supply of water may be affected by or in consequence of the works in this Order described or the other powers of this Order and for inspecting altering cleansing managing and using the said several works.

Description
of works.

5. The works herein-before referred to and authorised by this Order are situated partly in the county of Roxburgh and partly in the county of Selkirk and are the following (that is to say):—

- (1) A reservoir (Work No. 1) at or near Lindean Moor situate partly in the parish of Selkirk and partly in the parish

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of Galashiels and county of Selkirk commencing in the parish of Selkirk at a point in the field numbered 876 on the Ordnance Survey map of the county of Selkirk marked "Second Edition 1899" ninety yards or thereby measured in an easterly direction from the south-western corner of the said field and terminating in the parish of Galashiels at a point one hundred and eighty yards or thereby measured in a west-north-westerly direction from the north-west corner of the plantation numbered 699 on the said Ordnance Survey map :

- (2) A conduit or line of pipes (Work No. 2) wholly situate in the parish of Galashiels and county of Selkirk commencing in the intended reservoir (Work No. 1) at a point two hundred and forty-three yards or thereby measured in a west-south-westerly direction from the point of termination of said reservoir and terminating at a point two hundred and seventy-two yards or thereby measured in a south-south-easterly direction from said point of commencement :
- (3) A filter or filters and a clear water tank or tanks (Work No. 3) wholly situate in the parish of Galashiels and county of Selkirk in the moorland or enclosure numbered 698 on the Ordnance Survey map referred to :
- (4) A road of access (Work No. 4) wholly situate in the parish of Galashiels and county of Selkirk commencing at the point of termination of the conduit or line of pipes (Work No. 2) and terminating by a junction with an existing public road at a point forty-two yards or thereby measured in a west-north-westerly direction from the north-west corner of the plantation numbered 699 on the Ordnance Survey map before referred to :
- (5) A conduit or line of pipes (Work No. 5) situate partly in the parish of Galashiels and county of Selkirk and partly in the parishes of Bowden St. Boswells and Melrose and county of Roxburgh commencing at the point of termination of the conduit or line of pipes (Work No. 2) and terminating in the parish of Melrose in the enclosure numbered 91 on the Ordnance Survey sheet of the county of Roxburgh marked "Second Edition 1898" at a point thirty yards or thereby measured northward from the south-western corner of said enclosure :

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(6) A conduit or line of pipes (Work No. 6) situate partly in the parish of Bowden and partly in the parish of Lilliesleaf and county of Roxburgh commencing in the parish of Lilliesleaf in the public road passing through the village of Lilliesleaf at a point eighty yards or thereby measured in a south-westerly direction from the north-east corner of the field numbered 557 on the Ordnance Survey map of the county of Roxburgh before referred to and terminating by a junction with the conduit or line of pipes (Work No. 5) last described at a point twenty-seven yards or thereby measured in an east-north-easterly direction from the eastmost corner of the dwelling-house at Toftbarns Farm Steading.

All which intended works and the lands streams and other property which will or may be taken for the purpose thereof will be and are situate in the parishes of Selkirk and Galashiels and county of Selkirk and in the parishes of Bowden Lilliesleaf St. Boswells and Melrose and county of Roxburgh or some or one of them.

Power to acquire lands.

6. Subject to the provisions of this Order the County Council may purchase acquire hold enter upon appropriate take and use such of the lands shown on the deposited plans and described in the deposited book of reference as may be required for the purposes of the works herein-before described.

Power to take servitudes &c. by agreement.

7. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of these Acts and of this Order grant to the County Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Power to acquire servitudes only for lines of pipes.

8. The County Council may in lieu of acquiring any lands for the purpose of the conduits or lines of pipes by this Order authorised acquire such servitudes and rights in such lands as they may require for the purpose of making maintaining cleansing and repairing the same and may give notice to treat in respect of such servitudes and rights and may in such notice describe the nature thereof and the

several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such servitudes and rights as fully as if the same were lands within the meaning of such Acts. Provided that nothing herein contained shall authorise the County Council to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the County Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this proviso. Provided that as regards any lands taken or used by the County Council for the purpose of making such conduits or lines of pipes the County Council shall not (unless they give notice to treat for and have acquired such lands and not merely servitudes therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the County Council.

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9. The following provisions for the protection of the North British Railway Company (herein-after called "the North British Company") shall unless otherwise agreed between that company and the County Council and the District Committee apply and have effect (that is to say) :—

For protec-
tion of North
British Rail-
way Com-
pany.

(1) The conduit or line of pipes (Work No. 5) by this Order authorised where the same is intended to pass under any bridge carrying any railway of the North British Company over any road shall be constructed and executed and thereafter maintained renewed and repaired by the District Committee so as not to impair the stability of such bridge and to the reasonable satisfaction of the engineer of the North British Company :

(2) The County Council or the District Committee shall not take or acquire any lands or property of the North British Company for the purpose of this Order but shall be entitled to acquire such a servitude in or under any lands or property of the North British Company as may be required for laying down and maintaining the said conduit or line of pipes and relative works in accordance with the provisions of this Order :

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- (3) All the works and operations of the District Committee under this Order shall be constructed executed and completed so as not to injuriously affect the structure of any bridge or to cause any injury thereto or to any railway of the North British Company or any interruption to the passage or conduct of traffic on any such railway and if any injury or interruption shall arise from or be in any way owing to the works or operations of the County Council or the District Committee or the bursting leakage or failure of the said conduit or line of pipes or other works of the District Committee the District Committee shall forthwith make good or remove such injury or interruption at their own expense or failing their so doing the North British Company may do the same and the District Committee shall pay to the North British Company all costs and expenses loss or damage incurred or sustained by them in respect thereof :
- (4) The North British Company may repair and when necessary alter or reconstruct any bridge under which the said conduit or line of pipes may be laid but so as not to injuriously affect the conduit or line of pipes or works of the District Committee or to interrupt the water supply but if any injury or interruption shall arise from or be owing in any way to any works or operations of the North British Company on any such bridge the North British Company shall forthwith make good or remove such injury or interruption at their own expense or failing their doing so the District Committee may do the same and the North British Company shall pay to the County Council or the District Committee all costs and expenses loss or damage incurred or sustained by them in respect thereof Provided that any such works of the North British Company shall so far as they may interfere with the works of the District Committee be done to the reasonable satisfaction of the engineer of the District Committee :
- (5) If any difference shall arise between the County Council or the District Committee and the North British Company or between their respective engineers as to the meaning of this section or any matter arising under the provisions of this section or as to any plans or sections or the

mode of executing any works or as to any costs loss or damage provided for in this section such difference shall be determined by an arbiter to be appointed by the sheriff on the application of either the County Council the District Committee or the North British Company and the cost of any such reference shall be borne and paid as the said arbiter shall direct.

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10. The agreements respectively entered into between the District Committee and Charles Henry Scott Plummer and James Toner Hay and His Grace the Duke of Roxburghe as set forth in the First Second and Third Schedules respectively of this Order are hereby confirmed and shall respectively be carried out according to the true intent and meaning thereof.

Confirma-
tion of
scheduled
agreements.

11. In addition to the lands which the County Council are by this Order authorised to purchase compulsorily or any other lands they may acquire and hold for the protection of their waterworks they may from time to time by agreement purchase any additional quantity of land not exceeding in the whole ten acres Provided that neither the County Council nor the District Committee shall upon any such lands create or permit any nuisance or erect or authorise or permit the erection of any buildings other than buildings connected with their waterworks.

Power to
acquire
additional
lands by
agreement.

12. The County Council may hold any lands to be acquired by them under the powers of this Order and may by agreement purchase or acquire and hold any other lands which the District Committee may deem necessary for the purpose of preventing the fouling of the water of any stream flowing into any of their waterworks or for the protection of their waterworks against nuisance encroachment or injury and so long as such lands shall be so held they shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the District Committee shall not create or permit a nuisance and shall not erect any buildings on such lands while so held except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their waterworks.

Power to
hold lands
needful to
prevent
fouling and
to protect
water.

13.—(1) The County Council shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as

Restriction
on taking
houses of
labouring
class.

A.D. 1904. — tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the County Council acquire or appropriate any house or houses in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if they think fit reduce such penalty.

(3) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them The expression "house" means any house or part of a house occupied as a separate dwelling.

Period for
compulsory
purchase of
lands.

14. The powers of the County Council for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years after the passing of the Act confirming this Order.

Limits of
lateral and
vertical
deviation.

15. Subject to the provisions of this Order the District Committee may in the construction of the works by this Order authorised deviate from the lines thereof as shown or referred to on the deposited plans to any extent not exceeding the limits of deviation defined on the said plans and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoir five feet upwards and any extent downwards and not exceeding five feet downwards or upwards as regards the other works by this Order authorised Provided that the District Committee shall not in the exercise of the powers of deviation hereby conferred construct any embankment or retaining wall of any reservoir so that the height thereof above the general surface of the ground shall be more than three feet greater than the height of the corresponding embankment or retaining wall above the general surface of the ground shown on the deposited sections and shall not raise over the surface of the ground any part

of the pipes except so far only as is shown on the deposited sections
Provided also that where the line of any work is shown on the
deposited plans as passing along any public highway or private road
the limits of deviation if not otherwise laid down shall be the
boundaries of such highway or road.

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16. The provisions with respect to the temporary occupation of
lands of the Railways Clauses Consolidation (Scotland) Act 1845 as
incorporated with this Order shall apply only to the reservoir and
filters authorised by this Order and works immediately connected
therewith and the provisions of sections 25 and 26 of that Act shall
apply also to all other works by this Order authorised and for the
purposes of this Order those provisions shall be read as if the said
reservoir filters and works were therein mentioned instead of the
railway and the boundaries of the said reservoir filters and works
instead of the centre of the railway and the prescribed limits shall
be two hundred yards from such boundaries.

Temporary
occupation of
lands.

17. For the purposes and during the execution of the several
works which the District Committee are by this Order authorised
to make and subject to the provisions of this Order the District
Committee may from time to time break up or cross over or under
alter or stop up temporarily any sewers drains watercourses gas
pipes and water pipes and electric or telephonic apparatus in any of
the lands shown on the deposited plans and specified in the deposited
book of reference and which they may from time to time find it
expedient for any of these purposes so to interfere with or in any of
the lands acquired by the District Committee under the powers of
this Order or in any lands in which they may acquire a servitude
providing when possible a temporary substitute before interrupting
the flow of water gas sewage or electricity in any such sewer drain
watercourse pipe or apparatus and making full compensation to
all persons injuriously affected thereby Provided that nothing in
this section shall authorise any interference with electric apparatus
or other property of His Majesty's Postmaster-General or with
any works of any undertakers within the meaning of the Electric
Lighting Act 1882 otherwise than in accordance with the provisions
of section 15 of that Act.

Power to
alter sewers
&c. tempo-
rarily.

18. Where in the construction of the works by this Order
authorised any diverted or altered portion of road is formed in
lieu of any existing road such diverted or altered portion shall as
respects management and maintenance and in all other respects

New por-
tions of road
to be subject
to same pro-
visions as
existing
roads.

A.D. 1904. but subject to the provisions of this Order be held as part of and be subject to the same provisions as any existing road so diverted or altered.

Power to
divert and
impound
water.

19. Subject to the provisions of this Order the District Committee may divert intercept collect abstract impound take appropriate store use and distribute for the purposes of this Order all brooks streams burns springs and waters flowing directly or indirectly into or arising within the site of the reservoir (Work No. 1) by this Order authorised or which can be collected into the said reservoir.

For protec-
tion of reser-
voirs from
pollution.

20. The District Committee may on any lands or in any stream or watercourse which the County Council may acquire under the powers of this Order or otherwise construct all such drains channels and other works as they may think necessary or desirable for preventing sewage or polluting liquids from entering or polluting any of the reservoirs conduits or watercourses of the District Committee or any waters flowing into the same.

Compensa-
tion water.

21. The District Committee shall as soon as the reservoir (Work No. 1) is completed out of the water to be diverted and collected therein and before any of the water so collected shall be taken by the District Committee for the purposes of this Order during every day of twenty-four hours discharge or allow to flow as a preferential supply of compensation water in a regular and continuous stream not less than forty thousand gallons which quantity shall be deemed to be full compensation to all riparian proprietors tenants and occupiers millowners and all other persons interested in the waters intercepted and appropriated for the purposes of this Order which compensation water shall be discharged at or near the outlet of the existing tunnel through which the water from the drainage area of the said intended reservoir presently discharges.

Gauge to be
provided &c.

22.—(1) The District Committee shall construct and for ever thereafter maintain a proper and sufficient measuring gauge at a point to be reasonably approved at the expense of the District Committee by John Buchanan of Edinburgh civil engineer whom failing by J B Bennett of Edinburgh civil engineer whom failing by an engineer to be appointed by the sheriff over or through which the said quantity of compensation water shall flow or be delivered If any difference should arise as to the point where such measuring gauge should be placed the same shall be determined by an engineer to be appointed by the sheriff on the

application of the District Committee or of any person interested whose decision shall be final. A.D. 1904.

(2) The said measuring gauge shall be at all times open to inspection examination and testing by all persons having an interest in the water so to flow or be delivered through or over the same and of their respective agents.

(3) If at any time the said reservoir or gauge and works be out of repair or in an unfit condition for the purposes for which they are intended the District Committee shall forthwith put the same into fit repair and condition and if they fail to do so within seven days after notice in writing to that effect given to them or any proper official on their behalf by or on behalf of any persons having an interest or any one or more of them then any such person or persons may cause the same to be put in fit repair and condition and may recover the reasonable cost of so doing inclusive of the reasonable costs of inspection of and reports on such reservoir gauge and works rendered necessary by such failure with full costs of suit in any court of competent jurisdiction.

(4) If any dispute shall arise as to the fulfilment by the District Committee of any obligation imposed upon them by this or the immediately preceding section there are hereby reserved to all persons interested in the waters intercepted or appropriated for the purposes of this Order the whole remedies competent to them at common law to enforce due fulfilment.

23. If the works authorised by this Order are not completed within five years from the date of the Act confirming this Order then on the expiration of such period the powers by this Order granted to the District Committee for executing the said works or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein shall restrict the District Committee from extending enlarging altering or renewing any of their engines machinery weirs tanks pipes and other works from time to time as occasion requires for supplying water within the limits of this Order or beyond the said limits as authorised by this Order. Period for completion of works.

24. The water to be supplied by the District Committee need not be constantly laid on under pressure during the execution of necessary repairs renewals or alterations and the District Committee shall not be required to supply water in any case at a pressure greater than that to be afforded by gravitation from the service reservoirs already existing or by this Order authorised. Constant supply and pressure.

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Certain
special water
supply dis-
tricts dis-
solved.

25. The special water supply districts of St. Boswells Newtown Lilliesleaf and Midlem respectively shall subject to the proviso herein-after contained be deemed as on and after the fifteenth day of May one thousand nine hundred and five to have ceased to exist as special water supply districts and shall cease to be assessed for the purposes of water supply separately from other parts of the Melrose District water supply area formed by this Order but such special water supply districts shall thenceforth be for such purposes part of the said Melrose District water supply area and the water-works now supplying any of such special water supply districts in so far as belonging to the District Committee or County Council shall be part of the water undertaking as if the same had been constructed under this Order. Provided always that the said special water supply districts of St. Boswells and Newtown shall continue to be rated and assessed separately from the Melrose District water supply area for the purposes of (1) paying the expenses of maintaining and distributing their respective supplies of water under their existing arrangements until the first term of Whitsunday (fifteenth May) which shall arrive after the supply of water for domestic purposes from the works authorised by this Order comes into operation if such supply is not in operation on or before the said fifteenth day of May one thousand nine hundred and five and (2) the payment of the debt affecting and secured over the special rates of the said special districts until the same are respectively paid off and extinguished and the rights and powers of the creditors who before the passing of this Order have advanced money to the local authority connected with the water supply to said special water supply districts of St. Boswells and Newtown shall not be in any way prejudiced by this Order and all securities for such moneys may be enforced against the same assessments against which they may be enforced at the passing of the Act confirming this Order.

District
Committee
may alter or
increase
number and
size of filters
and other
works.

26. The District Committee may subject to the provisions of this Order make lay down maintain use extend alter renew relay replace enlarge and increase the number and size of the works filters pure water basins mains pipes and other conveniences from time to time in use or required for preventing the pollution of and for purifying conveying and distributing water under the powers of this Order and may also on any lands belonging to the County Council or which they may purchase or acquire erect and keep in repair a dwelling-house or dwelling-houses suitable for the workmen

in charge of the filters and other works forming part of the water undertaking Provided always that such making laying down extension enlargement or increase of works of the District Committee shall be executed only on lands or property for the time being belonging to the County Council or which the District Committee are by the Waterworks Clauses Acts 1847 and 1863 entitled to open and break up for such purposes or over which the County Council have acquired servitudes for that purpose by agreement or under the powers of this Order and the Acts incorporated herewith.

A.D. 1904.

27. The District Committee may subject to the provisions of this Order upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with water and may lay in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to and for the purposes of this section.

Power to lay pipes in streets not dedicated to public use.

28. The District Committee may cause pipes to be laid and water to be brought through all streets or portions of streets along which houses are built within the limits of supply and shall as soon as conveniently may be after the completion of the reservoir and other works by this Order authorised to be constructed at the request of the owner or occupier of any house or part of a house occupied as a separate dwelling in any such street as aforesaid situated within the limits of supply furnish to such person by means of service or communication pipes and other necessary and proper apparatus to be provided laid down and maintained by and at the cost of such person unless otherwise agreed between him and the District Committee a sufficient supply of water for domestic purposes in any such house or dwelling including the office houses yards and other pertinents of the same Provided that no person shall be entitled to demand such supply of water or to require the District Committee to lay down pipes or fire plugs unless some pipe of the District Committee shall have been laid within one hundred yards of the premises in respect of which such supply of water or pipes or fire plugs is demanded or unless the District Committee shall have become bound by virtue of a requisition and agreement made and executed in the manner and to the extent required by the Waterworks Clauses Act 1847 to cause pipes to be laid down within the said distance of one hundred yards of such

Supply of water for domestic use within limits of supply.

A.D. 1904. premises Provided further that such agreement shall be for ten successive years at least.

Owners to
provide and
maintain ser-
vice pipes.

29. For the purpose of providing for the better distribution of the water supply among the inhabitants the District Committee in addition to the powers conferred by the Public Health (Scotland) Acts in force for the time may require the owner of any dwelling-house or tenement of dwelling-houses not properly supplied with water in any street within the limits of supply in which the pipes of the District Committee are laid within one hundred yards from said dwelling-house or tenement of dwelling-houses to take a supply of water for such house or tenement by connecting a service or communication pipe with the main pipe of the District Committee in any such street (such connexion to be made by the District Committee or some person to be employed by them at the expense of the owner) and to provide lay and maintain in good and sufficient repair such service or communication pipes stand-pipes or taps cisterns and other means and apparatus and in such positions as shall appear to the District Committee to be necessary for that purpose and in the event of refusal or delay on the part of such owner to comply with such requisition within a month of the date on which such requisition is given it shall be lawful for the District Committee or persons employed by them after twenty-four hours' notice in writing to enter such house or tenement and premises connected therewith between the hours of nine in the morning and four in the afternoon and to provide lay and maintain such service or communication pipes stand-pipes or taps cisterns and other means and apparatus in such positions as aforesaid and to recover the expense thereof from such owner in the same manner as rates or charges are recoverable by the District Committee under this Order Provided always that in the case of houses not exceeding five pounds of yearly rent or value such owner shall not be required to introduce water into each house if such means of supply has been provided for each tenement of houses as the District Committee may reasonably deem necessary Provided also that in case of any question or difference arising between the District Committee and such owner with respect to the necessity for such supply being provided for any such house or tenement or with respect to the number or description of service or communication pipes stand-pipes or taps cisterns or other means and apparatus necessary for the purpose aforesaid the same shall be determined and fixed by the sheriff on summary

application by either of the parties and the decision of the sheriff shall be final and not subject to appeal or review in any court or by any process whatever. A.D. 1904.

30. The District Committee shall not be bound to supply more than one tenement of houses by means of the same service pipe but they may if they think fit require that a separate pipe from the main be laid into each tenement of houses supplied by them with water. District Committee not bound to supply several tenements of houses by one pipe.

31. Where there are two or more tenements in a row or group no tenant or occupier of any one of the tenements nor any person on his behalf shall take or use the water laid on by the District Committee to any other of such tenements unless such tenant or occupier be in respect of the tenement so occupied by him assessed or rated for a supply of water. Supply of water to tenements in a row.

32. Subject to the provisions of this Order the District Committee may if they see fit from time to time enter into and carry into effect such contracts and arrangements with any local authority company body or person outside the limits of supply with respect to the supply of water or for the laying or acquisition of mains pipes or other works outside the limits of supply as the District Committee may think fit and every such contract and arrangement may be for such period and on such terms (pecuniary or otherwise) and conditions as the District Committee may think fit. Power to supply water by agreement.

33. The District Committee may furnish to any person a supply of water for other than domestic purposes at such rates and upon such terms and conditions as shall from time to time be fixed by the District Committee and published by being exhibited in the office of the clerk of the District Committee at Melrose or wherever such office may be situated. Provided that so far as possible the rate for such supply of water shall be uniform to all persons in the same circumstances and requiring the same extent of supply and the charges for such supply shall be recoverable in the same manner as any other water rates or charges may be recovered under the authority of this Order and the Acts incorporated herewith. District Committee may supply water for other than domestic purposes.

In the event of there being any dispute at any time as to the rate to be charged from time to time for water to be supplied in bulk or as to the ability of the District Committee to give a supply for purposes other than domestic the same shall subject to the provisions of this Order be referred to the sheriff upon summary

A.D. 1904. application by either of the parties and the decision of the sheriff on the question so referred shall not be subject to appeal.

Supply of water for other than domestic purposes not to affect domestic supply.

34. The supply of water beyond the limits of supply shall not prejudicially affect or restrict the supply of water from time to time required for domestic use or trade purposes within the limits of supply and the supply of water for other than domestic purposes within the limits of supply shall not prejudicially affect or restrict the supply of water from time to time required for domestic use within the limits of supply.

As to supply of water by meter and by agreement.

35. The District Committee shall not be bound to supply any dwelling-house with water (otherwise than by meter or by special agreement under the section of this Order of which the marginal note is "District Committee may supply water for other than domestic purposes") when any part of such dwelling-house is used for any trade or business purpose for which water is required.

Water supplied for domestic purposes not to be used for other purposes.

36. In addition to and without prejudice to the provisions contained in this Order or in the Acts incorporated herewith with regard to the misuse of water supplied by the District Committee no person supplied by the District Committee with water for domestic purposes shall use such water or suffer the same to be used for the purposes of affording power to or in connexion with any machinery or apparatus whatsoever and every person offending against this enactment shall for every such offence forfeit and pay to the District Committee a penalty not exceeding five pounds.

Penalty for taking water from public fountains &c. except for domestic use.

37. Every person who takes water from any public fountain or stand-pipe belonging to the District Committee for any purpose other than domestic use or for drinking unless under written agreement with the District Committee shall for every such offence be liable to a penalty not exceeding five pounds.

Water to be supplied by measure if required in certain cases.

38. The District Committee may require any person or company supplied with water for other than domestic purposes to take and pay for his or their supply by measure and if so required by any such person shall subject to the provisions of this Order supply him with water by measure for other than domestic purposes. In every case a meter for ascertaining the quantity consumed shall be provided by the District Committee at a reasonable rate for the same. Provided that when water is supplied for other than domestic purposes it shall not be lawful for the District Committee to charge the person or company so supplied both with the domestic water rate herein-after mentioned applicable to the buildings or

premises so supplied and also for the supply of water obtained for other than domestic purposes to those buildings or premises but the District Committee may either charge the said rate leviable on such buildings or premises or charge for the supply of water furnished to the same as they may think fit. Provided that in the application of this section to lands premises or buildings belonging to any railway company such company shall be entitled to require the District Committee to set off against the aggregate of the said rate (other than the public water rate authorised by this Order) levied upon its whole lands premises and buildings other than dwelling-houses within the limits of supply the aggregate amount of the charges for water furnished to such company for other than domestic purposes at all places wheresoever within the limits of supply the District Committee being entitled to charge either of such aggregates as they shall think fit.

A.D. 1904.

39. The District Committee may sell and dispose of meters and any water fittings upon and subject to such terms (pecuniary or otherwise) and conditions as they may think fit and may let for hire any meters for ascertaining the quantity of water consumed or supplied and any water fittings for such remuneration in money and on such terms and conditions with respect to the repair maintaining and protection of such meters and fittings and for securing safe access to and the safety and return to the District Committee of such meters and fittings as may from time to time be agreed upon between the hirer and the District Committee.

Power to sell
or let meters.

40. When water is supplied by measure the register of the meter shall be *prima facie* evidence of the quantity of water consumed.

Register of
meter to be
prima facie
evidence.

41. The District Committee may if requested by any person supplied or about to be supplied by them with water furnish to him and from time to time repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil pans water closets apparatus and receptacles as are required or permitted by regulations made or to be made by the District Committee and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the District Committee in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
District
Committee
to supply
materials.

42. No person shall connect any meter with any pipe through which any water is supplied by the District Committee to such

Meters not to
be connected
or discon-

A.D. 1904.
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nected with-
out notice to
District
Committee.

meter or disconnect any meter from any such pipe unless he shall have given to the District Committee not less than forty-eight hours' notice in writing of his intention so to do and all alterations or repairs to and the connecting or disconnecting of meters shall be done at his cost and be performed under the superintendence of an officer or person authorised by the District Committee or if the District Committee in any case so elect may be done by the District Committee and the cost thereof recovered from the person requiring the same or on whose behalf the same were performed and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

Fraudulently
injuring
meters &c.

43. Any person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or fitting belonging to the District Committee or fraudulently alters the index to any meter or fraudulently prevents any such meter from duly registering the quantity of water supplied or who without due authority from the District Committee in any way interferes with any valve pipe lock cock or other apparatus or works of the District Committee or with any meter used for registering the quantity of water supplied by the District Committee to the injury of the District Committee shall (without prejudice to any other right or remedy for the protection of the District Committee or the punishment of the offender) for every such offence be liable to a penalty not exceeding five pounds and the District Committee may in addition thereto recover the amount of any damages sustained by them and the District Committee may also discontinue the supply of water to the person so offending until the injury is remedied and the amount of the damages is paid notwithstanding any contract previously existing and the existence of artificial means for causing such alteration or prevention when such pipe meter fitting valve lock cock or other apparatus is under the custody or control of the consumer shall be *prima facie* evidence that the same has been fraudulently caused by the consumer using such apparatus Provided that the District Committee shall not under the powers of this section discontinue any supply of water for domestic purposes within the limits of this Order.

Tube or hose
not to be
affixed to
mains or
pipes with-
out consent
of District
Committee.

44. It shall not be lawful for the owner or occupier of any house or premises supplied with water by the District Committee without their written consent to affix or permit or suffer to be affixed any tube or hose to any of the mains or pipes of the District Committee or to any service pipe or apparatus of such

owner or any other owner or occupier for the purpose of washing horses carriages or other vehicles windows houses or buildings or for watering gardens or washing pavements or footpaths of roads or for any other purpose and the District Committee may prohibit the same and without prejudice thereto any person who contravenes this enactment shall be guilty of an offence and shall for such offence forfeit and pay to the District Committee a penalty not exceeding forty shillings. A.D. 1904.

45. The District Committee may if they see fit furnish a supply of water for the purposes of watering or cleansing streets roads or sale-yards for the disposal of stock or of flushing or cleansing sewers or drains or for public baths or washhouses or for public fountains either gratuitously or at such charge or reduced charge and upon such terms and conditions as they shall think proper. Water may be supplied for cleansing streets &c.

46.—(1) The District Committee may subject to the provisions of sections 183 to 187 of the Public Health (Scotland) Act 1897 make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as water fittings) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination and such byelaws may provide for such penalties for breaches of such byelaws not exceeding forty shillings for each offence as may be considered expedient Provided always that such byelaws shall apply only in the case of premises to which the District Committee are bound to afford and do in fact afford or are prepared on demand to afford a constant supply of water. Byelaws for preventing waste &c. of water.

(2) In case of failure of any person to observe such byelaws as are for the time being in force the District Committee may if they think fit after twenty-four hours' notice in writing enter upon any premises and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the District Committee as the water rates in respect of the premises are recoverable.

A.D. 1904.

Form and
service of
notices by
District
Committee.

47. Any notice to be served on a person supplied with water shall be sufficiently authenticated by the name of the clerk to the District Committee or if it be a notice to pay a charge in respect of the supply of water by the name of the county collector or the collector of the District Committee being affixed thereto in print or in writing or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known place of abode or business or by delivering the same to any inmate of his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after diligent inquiry unknown it shall be sufficient to affix it or a copy thereof upon some conspicuous part of such premises.

District
Committee
to estimate
annual sums
required.

48. The District Committee shall and they are hereby authorised and required once in every year on or before the second Tuesday of September to lodge with the county clerk a detailed estimate of the expenses incurred or to be incurred for the purposes of the water supply and the water undertaking under this Order for and during the year next ensuing the fifteenth day of May then last past including the sums necessary for payment of interest on and repayment of principal of any money borrowed for providing such supply.

County
Council to
assess and
levy domes-
tic water
rate.

49. The estimate to be made up in manner before provided shall be submitted to the finance committee of the County Council who shall revise the same and submit the estimate so revised to the County Council at their meeting in the month of October in each year and the County Council may and they are hereby authorised and required annually to impose and levy an assessment to be called the domestic water rate upon all lands and heritages within the limits of supply (but subject to the provisions of the sections of this Order the marginal notes whereof are respectively "Certain special water supply districts dissolved" and "As to Bowden Newstead and Gattonside Special Water Supply Districts") at such rate in the pound as shall be sufficient when supplemented by the public water rate (if any) after mentioned and the other water revenues received under the powers of this Order to defray the expenses referred to in the immediately preceding section Provided that as regards all persons who shall be the owners or occupiers of any dwelling-houses railway stations or other buildings (other than tenements situated in a private close or place) they shall not be

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liable to be assessed in respect thereof for the domestic water rate unless such dwelling-houses railway stations or other buildings shall have been actually supplied with water under this Order or unless some pipe of the District Committee shall be laid down within one hundred yards of the same measuring from the outer wall of such dwelling-houses railway stations or other buildings or of any domestic offices in contact with and occupied as appurtenances of such dwelling-houses railway stations or other buildings and that as regards the owners or occupiers of tenements situated in a private close or place they shall not be liable to be assessed in respect of such tenements for the said domestic water rate unless such tenements shall have been actually supplied with water under this Order or unless some pipe of the District Committee shall be laid down within one hundred yards of the entrance to such close or place or the nearest part thereof Provided also that no agricultural lands shall be assessed for the domestic water rate unless some pipe of the District Committee shall be laid down within one hundred yards measuring as aforesaid from some dwelling-house or dwelling-houses upon the same and then only in respect of the annual value of such dwelling-house or dwelling-houses and pertinents and in any case in which the annual value of such dwelling-house or dwelling-houses and pertinents is not entered in the valuation roll separately from that of the remainder of the subject of which it or they form part or pertinent the County Council shall subject to the right of appeal to the sheriff by any person aggrieved apportion to the said dwelling-house or dwelling-houses its or their due proportion of the annual value of the entire subjects as entered in the valuation roll and for the purpose of assisting them in making any such apportionment the County Council may employ any surveyor or other skilled person All such apportionments shall on or before the twenty-fifth day of October annually be intimated by the County Council through their clerk to the party or parties liable for the domestic water rate and such party or parties in the event of his or their appealing to the sheriff against such apportionment shall lodge such appeal and shall give to the clerk of the County Council notice thereof on or before the fifth day of November following and the appeal (unless the same is withdrawn) shall be prosecuted and the sheriff's decision thereon obtained as soon as possible thereafter which decision shall be final:

Provided that the annual value of the following lands or premises shall for the purposes of the domestic water rate be held

A.D. 1904. to be one fourth of the annual value thereof entered in the valuation roll viz. :—

- (1) All lands and premises used exclusively as a canal or basin of a canal or towing-path for the same or as a railway or tramway excepting the stations depôts and buildings which shall be assessable to the same extent as other lands and premises within the limits of supply :
- (2) All waterworks and underground or other pipes of any water company corporation or commissioners :
- (3) All mines minerals and quarries.

In this section "agricultural lands" means any lands and heritages used for agricultural or pastoral purposes only or as market gardens orchards allotments woodlands parks gardens or pleasure grounds or lands kept or preserved mainly or exclusively for sporting purposes.

Public water
rate to be
levied.

50. The County Council may and they are hereby authorised if they shall think fit annually to impose and levy an assessment (to be called the public water rate) upon all lands and heritages within the Melrose District (but subject to the provisions of the next following section of this Order) but such assessment shall not exceed one penny in the pound and may be such less amount as the County Council may from time to time determine.

As to Bow-
den New-
stead and
Gattonside
special
water sup-
ply districts.

51. The special water supply districts of Bowden and Newstead situated within the limits of supply which are at present adequately supplied with water from sources other than the water undertaking authorised by this Order shall not be assessed or made liable for either the domestic water rate or public water rate authorised by this Order but so long only as they respectively remain adequately supplied from sources other than the water undertaking authorised by this Order. Provided always that such water supply districts shall respectively continue to be assessed separately and respectively for management and maintenance and payment of any existing debt (until the same is paid off and extinguished) in the same manner as before the passing of the Act confirming this Order. Provided further that the special water supply district of Gattonside situated outside the limits of supply which is also adequately supplied with water from a source other than the water undertaking authorised by this Order shall not be assessed or made liable for the public water rate so long as it is adequately supplied from sources other than the water undertaking authorised by this Order.

52. The District Committee shall not be obliged to furnish a supply of water to any person for any less sum than five shillings in any one year.

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Minimum
water rate.

53. The assessments or rates by this Order authorised shall be deemed to be the assessments authorised by the Public Health Acts and shall not without the consent of the Local Government Board for Scotland exceed the rates in the pound set forth in section 137 of the Public Health (Scotland) Act 1897 which section shall apply as if the same were expressly incorporated herein and the said assessments or rates shall be imposed and levied and be payable and may be recovered in the same manner as nearly as may be as assessments under the provisions of the said Acts and for the purposes of the said assessments the limits of supply shall subject to the provisions of this Order be deemed to be a special water supply district.

As to mode
of levying
and recover-
ing assess-
ments.

54. The Council shall after making provision for—

(1) The expenses of collection ;

(2) The payment of interest on the money borrowed by them under this Order ;

(3) The repayment by instalments or otherwise of money from time to time borrowed or the setting apart of the sinking fund in accordance with the provisions of the Act of 1889 and this Order ;

Application
of rates and
charges.

pay over the balance of the several assessments or rates levied and other revenue (if any) received by them under the authority of this Order to the District Committee as the District Committee may from time to time require and the District Committee shall apply the same for the purposes of the water supply and water undertaking under this Order.

55. If the County Council shall find it necessary in any financial year to make payments in connection with the current annual expenditure for the purposes of this Order in anticipation of the rates under this Order applicable to the expenditure of such year they may without any consent borrow from any incorporated or joint stock bank or other company or person on such terms and conditions and in such form as may be agreed on between the parties money on the security of the rates levied or to be levied for the financial year then current in so far as payment of the same has not been received but not to an amount greater than one half

Power to
borrow in
anticipation
of current
year's
revenues.

A.D. 1904. of the total aggregate sum levied for the preceding year and when any money has been so borrowed on the security of the rates of any financial year it shall not be competent to borrow on the security of the rates of any other year until the money borrowed as aforesaid shall have been paid off the provisions of this section however being without prejudice and in addition to the powers of borrowing conferred by or referred to in the sections of this Order the marginal notes whereof are respectively "County Council may pay interest and instalments of debt and charge same against domestic water rate when leviable" and "Power to County Council to borrow."

Application
of penalties.

56. All payments penalties and forfeitures exigible under the provisions of this Order and of the Acts wholly or partially incorporated herewith (excepting any penalties which may be imposed upon the District Committee) shall under deduction of any expenses of prosecution incurred and not otherwise recovered be paid over to the District Committee and applied for the purposes of this Order.

County
Council may
pay interest
and instal-
ments of
debt and
charge same
against
domestic
water rate
when levi-
able.

57. Until the District Committee are supplying water for domestic purposes from the works authorised by this Order the County Council shall from time to time pay all interest and instalments of principal as the same respectively may become due and require to be paid or set aside in respect of the moneys borrowed under this Order and shall accumulate such payments with interest at such rate as the County Council may determine not exceeding the rate of interest on overdrafts chargeable by the chartered or incorporated banks in Scotland and shall subject to the provisions of this Order charge the same against the rates leviable by them under this Order and when and so soon as the domestic water rate authorised by this Order shall become leviable the County Council may and they are hereby authorised and required from time to time subject as aforesaid to levy that rate to such an increased annual amount as when supplemented by the public water rate (if any) may be required to repay any moneys so accumulated by them as aforesaid within such period from the date of borrowing as they may determine not exceeding the number of years specified in the next succeeding section hereof and the moneys so accumulated shall be deemed to be capital expenditure for the purposes of this Order.

Power to
County
Council to
borrow.

58. On the requisition of the District Committee the County Council may with the consent of the standing joint committee in addition to the powers conferred by the Public Health Acts borrow

money for any of the purposes of this Order on the security of the assessments by this Order authorised and may assign the said assessments and the general assessments which may be imposed under the said Acts or any of them in security of the money so borrowed and the provisions of section 67 subsections (3) (5) and (6) of the Act of 1889 shall so far as applicable apply to any moneys borrowed under the authority of this Order in the same manner as if such moneys had been borrowed under the provisions of the Act of 1889. Provided always that any loan under this section shall be repaid within such period not exceeding forty years as the County Council with the consent of the standing joint committee may determine in each case or within such period exceeding forty years but not exceeding fifty years as the County Council with the like consent and with the sanction of the Local Government Board for Scotland may determine.

59. The sums borrowed by the County Council under the authority of this Order shall be paid to the District Committee as the District Committee may from time to time require and shall be applied by the District Committee only to purposes to which capital is properly applicable.

Application
of moneys
borrowed.

60. All offences against the provisions of this Order or of any of the Acts incorporated with the same respectively or against any of the byelaws of the District Committee may be prosecuted and all penalties and forfeitures in respect of offences against any of such provisions or byelaws may be recovered by and in the name of the District Committee under the Summary Jurisdiction Acts.

Prosecution
of offences.

61. All mortgages to be granted by the County Council for the purposes of this Order and transferences or assignments and discharges thereof may be in the forms contained in the schedule to the Public Health (Scotland) Act 1897 or to the like effect.

Form of
mortgage.

62. Every mortgage to be granted by the County Council for the purposes of this Order shall in addition to being sealed be signed by two of the members of the County Council and the county clerk. Provided always that no county councillor or official holding office under the County Council shall by his subscription of any such mortgage be or be held to have rendered himself individually or personally liable for the payment of any money so borrowed or any interest thereon or of any sums whatsoever in respect thereof.

Manner in
which mort-
gages to be
executed.

- A.D. 1904.
Transfer of mortgages. 63. Any person entitled to any such mortgage may transfer his right and interest therein to any other person and every such transfer shall be by deed or by indorsation on the mortgage wherein the consideration shall be truly stated.
- Transfer of mortgages in case of bankruptcy. 64. If any such mortgage be transmitted by reason of the bankruptcy of the person entitled thereto there shall be produced to the County Council official evidence of such bankruptcy and of the vesting of the bankrupt estate in the trustee official assignee or other person to whom such estate shall be transferred.
- Mortgages of rates to be personal estate. 65. All mortgages and all moneys advanced and lent on the security of the assessments rates rents and charges under this Order shall be moveable or personal estate and transmissible as such and shall not be of the nature of heritable or real estate.
- Discharge of mortgages. 66. Any person entitled to any mortgage granted by the County Council under the authority of this Order may discharge the same and his right and interest therein in favour of the County Council and every such discharge may be written on the mortgage and such discharge when signed by the person entitled to such mortgage shall be valid and effectual to all intents and purposes.
- Protection of lender from inquiry. 67. No person lending money to the County Council shall be bound to inquire as to the observance by the County Council of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or any part thereof.
- Audit of accounts. 68. Sections 68 69 and 70 of the Act of 1889 relating to the accounts and audit so far as the same are applicable shall apply to the accounts of the County Council (including those of the District Committee) under the provisions of this Order and to the audit of such accounts.
- County Council and District Committee to be deemed to act as local authorities. 69. In carrying out the provisions of this Order the County Council and the District Committee respectively shall be deemed to be acting as the local authorities under the Public Health (Scotland) Acts and they shall possess all the powers and be subject to all the restrictions of the Public Health Acts with respect to water supply except in so far as the same are varied by the provisions of this Order.
- Costs of Order. 70. The costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirmation of the same by Parliament or otherwise in relation thereto

shall be paid by the County Council out of the assessments or rates to be levied or out of the moneys to be borrowed under the authority of this Order or out of any other moneys which the County Council may legally apply to such purpose but in the event of such costs being paid out of money borrowed the same shall be repaid within five years from the passing of the Act confirming this Order.

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The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

MINUTE OF AGREEMENT between the MELROSE DISTRICT COMMITTEE OF THE COUNTY COUNCIL OF THE COUNTY OF ROXBURGH (herein-after called "the District Committee") of the first part and CHARLES HENRY SCOTT PLUMMER Esquire of Sunderland Hall Selkirk heir of entail in possession of the entailed lands and estate of Middlestead and others in the Counties of Selkirk and Roxburgh (herein-after called "the Second Party") of the second part.

WHEREAS the District Committee are about to promote a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 to empower them to construct and maintain waterworks and to supply water within their district and to authorise the County Council of the said county of Roxburgh to acquire lands and servitudes for the purposes of such water supply and to authorise and require the said County Council to levy assessments and to borrow money for such waterworks and supply and for other purposes :

And whereas it is part of the scheme of the District Committee that in the event of their obtaining a Provisional Order or Act of Parliament in terms of said Order (the application for which requires the consent and concurrence of the said County Council) the said County Council shall acquire from the Second Party and hold for behoof of the District Committee the land and water rights and wayleaves herein-after specified :

And whereas the District Committee and the Second Party have subject to the approval of the said County Council agreed upon the terms on which the same shall be acquired and it is desirable that the same should be herein set forth :

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Now therefore the District Committee subject to approval as aforesaid and the Second Party hereby agree and respectively bind themselves as follows viz. :—

First The Second Party or his successors in said lands shall at any time when called upon by the District Committee within three years from the last date of this agreement grant in favour of the said County Council an absolute disposition or conveyance of the portions of land after specified free from all burdens and fetters whatsoever together with the water rights and the servitude rights of wayleave and of roads and bond of servitude hereinafter specified and he shall grant such disposition or conveyance accordingly with all the usual and necessary clauses appropriate thereto in such manner and in such terms as that the same shall in all time coming be binding not only on himself but also on all future heirs of entail or others succeeding to or acquiring the lands and others affected thereby with full power and liberty to the County Council or District Committee to enter upon the said ground for the purpose of constructing laying down and maintaining altering repairing and renewing a water reservoir filters clear water tank main pipes and other works relative thereto or for any other necessary purpose.

Second The lands to be conveyed by the Second Party to the County Council are the following—(First) The area of ground coloured pink and marked “Land to be acquired for Reservoir” on the plan or tracing prepared by William Robertson Copland C.E. Glasgow annexed and signed as relative hereto and extending to twenty-one acres Imperial standard measure or thereby together with the Second Party’s whole right title and interest in and to the springs and waters flowing towards or arising or accumulating within the said area of ground or the reservoir to be partly formed in said area or naturally forming part of the supply of water to be derived from the drainage area of the said reservoir and (Second) The small quadrilateral area of ground also coloured pink and marked “For Filters” on the said plan or tracing annexed and signed as relative hereto on which there will also be formed a clear water tank and relative works and extending to sixty-two one-hundredth parts of an acre Imperial standard measure or thereby which two areas above referred to form part of the said entailed lands and estate of Middlestead and others and lie in the parish of Galashiels and county of Selkirk (formerly in the county of Roxburgh) The Second Party shall also grant and convey to the said County Council (Third) An heritable and irredeemable servitude right and tolerance of using the tunnel situated at the south side of the said reservoir so long as the said tunnel may exist for the purpose of an overflow and also for laying in and through it the main pipe after mentioned with right to enter said tunnel whenever desired to repair maintain and renew the said main pipe but there shall be no obligation on the Second Party or his foresaids to maintain the said tunnel he and his foresaids however being bound to abstain from any act which may alter or injure the same or restrict or interfere with its full use by the District Committee or County Council for the purposes aforesaid (Fourth) An heritable and irredeemable servitude right and tolerance over his said lands

and estate of laying down under cover throughout its whole length and maintaining and from time to time renewing a line of iron main pipe in and through the said lands and estate from the reservoir to be formed on the larger area of ground above referred to through the foresaid tunnel to the south of the said reservoir to the boundary between the property of the Second Party and the property of His Grace the Duke of Roxburghe in the line delineated in pink on the said plan or tracing annexed and signed as relative hereto or on such other line as the parties hereto may arrange for the purpose and use of conveying water from the said reservoir to the villages of Midlem Lilliesleaf St. Boswells and Newtown and other places within the District Committee's district or adjacent thereto extending said line to three hundred and eighty-nine lineal yards or thereby together with full power and liberty to the County Council or District Committee to enter upon the said ground through which the said main pipe is to be laid for the purpose of laying down maintaining and renewing the said pipe or for any other necessary purpose in connexion therewith and (Fifth) An heritable and irredeemable servitude right and tolerance over the said lands and estate of cart roads not less than twelve and not more than twenty feet wide from the public road at the east side of the reservoir to be formed as aforesaid in the lines delineated and coloured blue on the said plan or tracing annexed and signed as relative hereto for the purpose and use of obtaining access to the said reservoir and to the filters and clear water tank and relative works to be formed on the foresaid site marked "For Filters" with power to form and maintain and from time to time repair the said roads as they may think proper and further the Second Party or his foresaids shall in the said disposition or conveyance to be granted as aforesaid bind himself and the heirs of entail or heirs-at-law or others succeeding to him in or acquiring the lands and others immediately after specified and described never to lay deposit or use or permit his or their servants tenants or others to lay deposit or use any farm yard or police or town's manure on or in that portion of the said entailed lands and estate of Middlestead and others lying to the north of the site for said reservoir and enclosed within the yellow boundary line on the plan or tracing annexed hereto but reserving to the proprietor right to use any other manure than those above specified which bond or obligation of servitude shall in the said disposition or conveyance be declared a real burden or servitude in favour of the said County Council as proprietors of the subjects to be disposed to them as aforesaid upon the foresaid area and as such shall be inserted or validly referred to in all future conveyances and investitures of and relating to the same under pain of nullity But reserving to the Second Party and his heirs and successors in the said lands and estate for their own personal use and the use of their families and persons authorised by them and holding their written authority (but not lessees or persons giving pecuniary or other consideration for the right or privilege) the sole right of shooting or fishing within the lands to be disposed as aforesaid or in the reservoir to be formed as aforesaid in so far as occupying the solum to be acquired from the Second Party including the right with consent and concurrence of the

A.D. 1904. — proprietor of the adjacent lands of Greenhead in the parish of Selkirk and county thereof from whom the other portion of the solum of the said reservoir is being acquired to stock the said reservoir with trout but only to such an extent as in the opinion of the District Committee's sanitary inspector shall not have a detrimental effect on the water and to use a boat or boats thereon but the District Committee shall have the right to prohibit the Second Party and his foresaids from using such boat or boats on the reservoir and to call upon them to remove the same therefrom if in their opinion and that of their sanitary inspector for the time damage is or may be thereby caused to the embankments or works or the purity of the water is or may be liable to be impaired and it shall be lawful for the District Committee or any persons acting under their authority to keep and use a boat on the said reservoir for the sole purpose of constructing inspecting repairing or renewing the works of the District Committee and of cleansing the said reservoir.

Third In exchange for delivery of a legal and valid disposition or conveyance of the above areas of land and servitude rights the District Committee shall deposit in the National Bank of Scotland Limited in Edinburgh for the benefit of the party or parties interested the sum of one thousand three hundred and sixteen pounds thirteen shillings being the price or value thereof agreed on between the parties hereto and which price shall be confirmed by the Provisional Order fixing the same at the said amount of one thousand three hundred and sixteen pounds thirteen shillings and immediately upon such consignation the District Committee and the County Council shall be entitled to enter upon and take possession of the said lands and servitude rights and to commence and carry out the works involved in their scheme but they shall nevertheless be bound to pay make good or restore all surface or other damages that may be occasioned by such operations to the Second Party's said lands and estate other than the two pieces of ground first and second above described.

Fourth The District Committee shall at their expense enclose their reservoir with a suitable fence (no part of which shall be barbed wire) to exclude stock and to repair and maintain said fence in all time coming and in respect that their operations will interfere with the presently existing farm road at the west end of the ground to be disposed by the Second Party for a reservoir as aforesaid they shall provide in lieu thereof an equally good farm road in the track or line delineated and coloured green on the said plan or tracing annexed and signed as relative hereto also they shall settle with the Second Party's tenant of the lands and farm of Lindean under the existing lease the compensation which may be due to him in respect of loss of ground or surface damages or otherwise in any way whatever.

Fifth The First Parties shall keep the said whole works in good order and repair after completion and shall pay or make good to the Second Party or his successors and their tenants all surface or other damage of whatever nature that may be occasioned by flooding or overflow or otherwise by the failure of the said works or in course of the repairing or renewing the same from time to time.

A.D. 1904.
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Sixth The First Parties shall be responsible for all trespasses and damages to the property of the Second Party done by their contractors workmen watchmen and servants during the construction of the works and shall remove any of their servants or others employed by them on cause shown by the Second Party or his successors in the event of their poaching trespassing or other misconduct.

Seventh The whole expenses incurred or to be incurred by the Second Party in carrying through the legal proceedings necessary for disentailing the foresaid price or value (but only if such proceedings be instituted by the Second Party or his successors within one year after the consignment of said price or value in bank and be carried through without undue delay) and of and connected with this agreement or preliminary or incident thereto and with the foresaid disposition or conveyance as well as the whole expenses of arranging with or to be incurred by the heritable creditors for discharges of their securities so far as affecting the subjects to be included in the foresaid disposition or conveyance or for their consent thereto shall be paid by the District Committee as the same may if desired by the District Committee be taxed as between agent and client it being the intention of the parties hereto that the Second Party shall be relieved of all expenses of every kind in any way connected with or arising in connexion with this agreement and the First Parties' said Provisional Order.

Eighth This agreement is made subject to such alterations as may be made therein during the progress of the Provisional Order but if any material alteration be so made in this agreement it shall be competent to either party hereto to withdraw from the same.

Ninth Both parties consent to registration hereof for preservation and execution.

In witness whereof these presents written on this and the four preceding pages by Robert Shorthouse Dewar clerk to Alexander Murison Small Writer to the Signet Melrose are together with the annexed plan or tracing subscribed (declaring that the words "of Greenhead" are interlined between the twenty-ninth and thirtieth lines so as to be read after the word "lands" occurring in the said thirtieth line counting from the top of page third thereof and that the words "Tenant of the" are interlined between the twenty-second and twenty-third lines so as to be read after the word "Party's" occurring in the said twenty-third line counting from the top of page fourth hereof before subscription) as follows videlicet By the said Charles Henry Scott Plummer at Sunderland Hall aforesaid on the twenty-eighth day of November nineteen hundred and three before these witnesses Mrs. Sophia Goff or Scott Plummer widow of the late Charles Scott Plummer residing at Sunderland Hall aforesaid and John Finlay Butler at Sunderland Hall aforesaid and for and on behalf of the foresaid Melrose District Committee at a meeting of the said District Committee held at Newtown Saint Boswells on the thirtieth day of the month and year last mentioned by Thomas Alexander Riddell Carre of Cavers Carre Lilliesleaf Chairman

A.D. 1904. of said Committee and of said meeting and Thomas James Scougal Roberts vice-chairman of and the said Alexander Murison Small clerk to the said District Committee before these witnesses George Monteath civil engineer residing at Newtown Saint Boswells and John Smith sanitary inspector for the county of Roxburgh also residing at Newtown Saint Boswells.

G. MONTEATH Witness.

THOS A. RIDDELL CARRE

Chairman.

JOHN SMITH Witness.

T. J. S. ROBERTS.

A. MURISON SMALL

Melrose District Clerk.

SOPHIA SCOTT PLUMMER

C. H. SCOTT PLUMMER,

Witness.

JOHN FINLAY Witness.

THE SECOND SCHEDULE.

MINUTE OF AGREEMENT between THE MELROSE DISTRICT COMMITTEE OF THE COUNTY COUNCIL OF THE COUNTY OF ROXBURGH (herein-after called "the District Committee") of the first part and JAMES TONER HAY Esquire Blackhall Castle Banchory proprietor of the farm and lands of Green Head in the Parish of Selkirk and county thereof (herein-after called "the Second Party") of the second part.

WHEREAS the District Committee are about to promote a Bill before Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and the County Councils (Bills in Parliament) Act 1903 to empower them to construct and maintain waterworks and to supply water within their district and to authorise the County Council of the said county of Roxburgh to acquire lands and servitudes for the purposes of such water supply and to authorise and require the said County Council to levy assessments and to borrow money for such waterworks and supply and for other purposes :

And whereas it is part of the scheme of the District Committee that in the event of their obtaining a Provisional Order or Act of Parliament in terms of said Bill (the application for which requires the consent and concurrence of the said County Council) the said County Council shall acquire from the said Second Party and hold for behoof of the District Committee the land and water rights herein-after specified :

And whereas the District Committee and the Second Party have agreed upon the terms on which the same shall be acquired and it is desirable that the same should be herein set forth :

Now therefore the District Committee and the said Second Party hereby agree and respectively bind themselves as follows viz. :—

First The Second Party shall at any time when called upon by the District Committee within three years from the last date of this agreement

A.D. 1904.
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grant in favour of the said County Council an absolute conveyance with all the usual and necessary clauses appropriate thereto of that area of ground coloured pink on the plan or tracing prepared by William Robertson Copland C.E. Glasgow annexed and signed as relative hereto and extending to three acres and twenty-five one-hundredth parts of an acre Imperial standard measure or thereby forming part of the Second Party's lands and farm of Greenhead situated in the parish of Selkirk and county thereof with full power and liberty to the County Council or District Committee to enter upon the said ground for the purpose of constructing and maintaining altering repairing and renewing a water reservoir or works relative thereto or for any other necessary purpose together with the Second Party's whole right title and interest in and to the springs and waters flowing towards or arising or accumulating within the said area of ground or which can be collected by or made to flow naturally into the reservoir to be partly formed on said area for the purpose of collecting and distributing water for the supply of the villages of Midlem Lilliesleaf St. Boswells and Newtown and other places within the District Committee's district or adjacent thereto the District Committee however being bound and obliged to provide either from their said reservoir or in their option by laying leading drains on ground adjacent to the reservoir (which they are hereby authorised to do free of charge) a sufficient supply of water for a proper drinking trough to be provided and maintained by the said District Committee for the watering of stock at or near the point of junction of the three fields belonging to said Second Party numbered respectively 859 875 and 876 on the Ordnance Survey map (second edition 1899) of the said parish of Selkirk and the District Committee being also bound to enclose their reservoir with a suitable fence to exclude stock and to repair and maintain said fence in all time and to settle with the Second Party's tenant of the said lands and farm of Greenhead under the lease recently entered into the compensation which may be due to him in respect of loss of ground in so far as the area to be disposed exceeds one acre and two one-hundredth parts of an acre Imperial standard measure (the tenant's claim in respect of the said last-mentioned area being excluded by his lease) and also in respect of surface damages or otherwise.

Second In exchange for delivery of a legal and valid disposition of the above area of land and water rights the District Committee shall pay the Second Party the sum of eighty-one pounds five shillings sterling being the agreed-on price thereof and immediately upon payment the District Committee and the County Council shall be entitled to enter upon and take possession of the said lands and water rights and to commence and carry out the works involved in their scheme.

Third In the disposition to be granted as aforesaid there shall be reserved to the Second Party and his heirs and successors in the said lands and farm of Greenhead for their own personal use and the use of their families and others holding their written authority the sole right of shooting or fishing within the lands to be disposed as aforesaid or in the reservoir to be formed as aforesaid in so far as occupying the solum to be acquired from

A.D. 1904. — the Second Party including the right with consent and concurrence of the proprietor of the adjacent lands of Lindean from whom the other portion of the solum of the said reservoir is being acquired to stock the said reservoir with trout but only to such an extent as in the opinion of the District Committee's sanitary inspector shall not have a detrimental effect on the water and to use a boat thereon but the District Committee shall have the right to prohibit the Second Party and his foresaids from using a boat on the reservoir and to call upon them to remove it therefrom if in their opinion and that of their sanitary inspector for the time damage is or may be thereby caused to the embankments or works or the purity of the water is or may be liable to be impaired and it shall be lawful for the District Committee or any persons acting under their authority to keep and use a boat on the said reservoir for the sole purpose of constructing inspecting repairing or renewing the works of the District Committee and of cleansing the said reservoir.

Fourth The whole expenses incurred or to be incurred by the second party relative to this agreement and the aforesaid disposition to be granted by him shall be paid by the District Committee as the same may if desired by the District Committee be taxed as between agent and client.

Fifth This agreement is made subject to such alterations as may be made therein during the progress of the Provisional Order but if any material alteration be so made in this agreement it shall be competent to either party hereto to withdraw from the same.

Sixth Both parties consent to registration hereof for preservation and execution.

In witness whereof these presents written on this and the two preceding pages of stamped paper by William Milton clerk to Alexander Murison Small Writer to the Signet Melrose are together with the annexed plan or tracing subscribed as follows videlicet By the said James Toner Hay at Blackhall Castle Banchory on the twenty-eighth day of September nineteen hundred and three before these witnesses John Pirie land steward Blackhall and Charles McLennan footman Blackhall Castle aforesaid and for and on behalf of the foresaid Melrose District Committee at a meeting of the said District Committee held at Newtown Saint Boswells on the ninth day of October and year last mentioned by Thomas Alexander Riddell Carre of Cavers Carre Lilliesleaf chairman of said meeting Thomas James Scougal Roberts vice-chairman of and the said Alexander Murison Small clerk to the said District Committee before these witnesses George Monteath civil engineer residing at Newtown Saint Boswells and David Keir Conacher also clerk to the said Alexander Murison Small.

G. MONTEATH Witness.

THOS. A. RIDDELL CARRE

Chairman.

D. K. CONACHER Witness.

T. J. S. ROBERTS.

A. MURISON SMALL

Melrose District Clerk.

JOHN PIRIE Witness.

JAMES T. HAY.

CHARLES MCLENNAN Witness.

THE THIRD SCHEDULE.

A.D. 1904.

MINUTE OF AGREEMENT between THE MELROSE DISTRICT COMMITTEE OF THE COUNTY COUNCIL OF THE COUNTY OF ROXBURGH (herein-after called "the District Committee") of the first part and JAMES BRUNTON Writer to the Signet residing at Broomlands near Kelso Commissioner for His Grace Sir Henry John Innes Ker Baronet Duke and Earl of Roxburghe K.T. Marquis of Bowmont and Cessford Earl of Kelso Earl Innes Viscount Broxmouth Lord Ker of Cessford and Caverton and Lord of the Lordship and Barony of Holydean &c. &c. &c. conform to Factory and Commission granted by the said noble Duke in favour of the said James Brunton dated the thirtieth day of August and recorded in the Books of Council and Session on the eighth day of September both in the year eighteen hundred and ninety-seven of the second part.

WHEREAS the District Committee are about to promote a Bill before Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and the County Councils (Bills in Parliament) Act 1903 to empower them to construct and maintain waterworks and to supply water within their district and to authorise the County Council of the said county of Roxburgh to acquire lands and servitudes for the purposes of such water supply and to authorise and require the said County Council to levy assessments and to borrow money for such waterworks and supply and for other purposes :

And whereas it is part of the scheme of the District Committee that in the event of their obtaining a Provisional Order or Act of Parliament in terms of said Bill (the application for which requires the consent and concurrence of the said County Council) the said County Council shall acquire from the said noble Duke and hold for behoof of the District Committee the wayleave and other rights herein-after specified :

And whereas the District Committee and the said noble Duke have agreed upon the terms on which the same shall be acquired and it is desirable that the same should be herein set forth :

Now therefore the District Committee and the said James Brunton as commissioner foresaid hereby agree and respectively bind themselves as follows videlicet:—

First The said noble Duke or his successors in the lands after mentioned shall at any time when called upon by the District Committee within three years from the last date of this agreement grant in favour of the said County Council in the form of a feu charter or otherwise an heritable and irredeemable servitude right and tolerance over the lands after mentioned

A.D. 1904. of laying down maintaining and from time to time renewing a line of iron main pipe in and through the farm and lands of Clarilaw Moor in the parish of Bowden and county of Roxburgh from the boundary of the said noble Duke's property with the property of Lindean belonging to Charles Henry Scott Plummer Esquire of Sunderland Hall Selkirk to the public road or highway leading from Selkirk to Bowden at a point near Clarilaw Moor farm steading in the line delineated in pink on a plan of said lands prepared by William Robertson Copland civil engineer Glasgow and signed as relative hereto or on such other line as the parties hereto may arrange for the purpose and use of conveying water from the reservoir to be formed by the District Committee on the said lands of Lindean to the villages of Midlem Lilliesleaf St. Boswells and Newtown and other places within the District Committee's district or adjacent thereto extending said line to eight hundred and twenty-three lineal yards or thereby together with full power and liberty to the County Council or District Committee to enter upon the said ground through which the said main pipe is to be laid for the purpose of laying down maintaining and renewing the said pipe or for any other necessary purpose.

Second The District Committee in consideration of said servitude to be granted as aforesaid shall pay the said noble Duke and his successors in said land the sum of two pounds sterling at Martinmas annually commencing the first term's payment at the first term of Martinmas after the said pipes have been laid down for the period down to said term and the next payment at Martinmas following for the year preceding and so forth at Martinmas yearly thereafter in all time to come The District Committee shall restore the surface of the ground in which the pipe is laid and shall settle any claims for surface damages due to the said noble Duke or to the tenants of the lands.

Third The whole expense incurred or to be incurred by the said noble Duke for and in connexion with this agreement and with the grant to follow hereon shall be paid by the District Committee as the same may if desired by the District Committee be taxed as between agent and client.

Fourth This agreement is made subject to such alterations as may be made therein during the progress of the Provisional Order but if any material alteration be so made in this agreement it shall be competent to either party hereto to withdraw from the same.

Fifth Both parties consent to registration hereof for preservation and execution.

In witness whereof these presents written on this and the preceding page of stamped paper by George Frederick Melrose clerk to Alexander Murison Small Writer to the Signet Melrose are together with the annexed plan or tracing subscribed as follows videlicet For and on behalf of the foresaid Melrose District Committee at a meeting of the said District Committee held at Newtown Saint Boswells on the ninth day of October nineteen hundred and three by Thomas Alexander Riddell Carre of Cavers Carre Lilliesleaf chairman of said Committee and of said meeting and Thomas James Scougal Roberts vice-chairman of and the said Alexander Murison

Small clerk to the said District Committee before these witnesses George Monteath civil engineer residing at Newtown Saint Boswells and David Keir Conacher also clerk to the said Alexander Murison Small and by the said James Brunton at Broomlands aforesaid on the fifteenth day of the month and year last mentioned before these witnesses John Hepburn Milne Home principal clerk and William Muir clerk both in the Roxburghe Estates Office Broomlands aforesaid.

A.D. 1904.
—

G. MONTEATH Witness.

THOS. A. RIDDELL CARRE

Chairman.

D. K. CONACHER Witness.

T. J. S. ROBERTS.

A. MURISON SMALL

Melrose District Clerk.

J. H. MILNE HOME Witness.

JAMES BRUNTON.

WILLIAM MUIR Witness.

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